

support his motion to strike defense counsel's form declaration of demurring party in support of automatic extension (CIV-141). The arguments also appear to mostly mirror those made by Plaintiff in his motion to sustain default, which this Court already rules upon.

The Court already addressed the issues raised in this motion in its May 7, 2026, order relating to Plaintiff's motion to sustain default. That order, denying Plaintiff's motion, was uncontested by Plaintiff. The same reasoning supports denial of the instant motion, and the reasoning and rationale are incorporated herein.

Conclusion

Plaintiff's motion to strike declaration is **denied**.

16. 9:00 AM CASE NUMBER: C25-02965
CASE NAME: MICHAEL CARPENTER VS. NICK OTT
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO NICHOLAS S. SALTER FOR DEF SERA OTT
FILED BY: OTT, SERA
TENTATIVE RULING:

The motion was withdrawn. This case has been assigned to Department 16. Further Case Management Conference is set for November 17, 2026.

17. 9:00 AM CASE NUMBER: MSC20-02134
CASE NAME: TERESA NEENO VS. BARRY HACK
***HEARING ON MOTION IN RE: STAY PENDING APPEAL ON SHORTENED TIME**
FILED BY: KINDER, JUSTIN S.
TENTATIVE RULING:

Defendants' motion to stay proceedings in this action and stay enforcement of judgment pending appeal is **granted in part and denied in part**. The motion is granted as to recordation of the judgment or any easement instrument derived from the judgment. The motion is denied as to the hearing motion to tax costs, which shall proceed as scheduled on May 28, 2026.

Background

Plaintiff Teresa Neeno filed this action seeking a quiet title declaration of an equitable easement to access her property now designated as 4784 Venner Road in Martinez, which had no legal vehicular access without an easement over portions of the privately owned roads in the adjacent Muir Oaks subdivision. The Defendants are the owners of the Muir Oaks parcels underlying the roadways over which Plaintiff sought the easement.

Following a multi-day bench trial, the Court issued its Final Statement of Decision on the bifurcated first phase of trial, entering judgment in favor of Plaintiff Teresa Neeno on her second amended complaint and against Defendants on their cross-complaints (other than the Hjortsvang cross

complaint, which was bifurcated for later determination). The Court granted Plaintiff a 25-foot-wide equitable easement over Venner Road, Upton Road, John Muir Road, and the Hjortsvang "triangle" for access to and from her property at 4784 Venner Road. The easement was conditioned on Plaintiff's compliance with several restrictions designed to address Defendants' stated concerns, including prohibitions on subdividing the property, conducting an active business at the residence, and building out a certain easement to create a back-door route into Muir Oaks, as well as an obligation to pay an equal share of road maintenance assessments (conditioned on at least three-quarters of Muir Oaks parcel owners actually paying the same assessment, to guard against the risk that Plaintiff alone could be coerced into footing assessments that other owners are not required to pay). The Court further awarded nominal damages of \$100 to each remaining defendant household, plus an additional \$200 to the Hjortsvangs for the easement over the Hjortsvang triangle. Plaintiff was deemed the prevailing party.

On January 5, 2026, Defendants Gilbert French and Patricia French, as Co-Trustees of the Gilbert French and Patricia French Trust Dated August 11, 2004, Robert French, Julie French, Paul Engler, Rita Engler, Branon Long, Vicky D. Jared, as Trustee of the Jared Family Revocable Trust U/A/D 08-09-07, and David Timothy Hjortsvang and Erick Warren Hjortsvang, as Co-Trustees of the Hjortsvang Trust filed a notice of appeal from the judgment entered on November 6, 2025.

On March 12, 2026, Defendants filed the instant Motion to Stay Proceedings and Stay Enforcement of Judgment Pending Appeal. Defendants seek two forms of relief pending resolution of the appeal: (1) an order staying all enforcement actions pertaining to the November 6, 2025 judgment, including recordation of the easement against Defendants' properties; and (2) a stay of the hearing on Defendants' motion to tax costs, currently set for May 28, 2026.

Analysis

By this motion, defendants request an order "confirming" that enforcement of the November 2025 judgment is stayed pending the appeal. They argue this is automatic under Code of Civil Procedure section 916 since the judgment didn't order them to pay money. Defendants additionally seek to stay the May 28, 2026 hearing on Defendants' motion to tax costs. Defendants ask that the cost hearing be postponed until the appeal is resolved, because otherwise they will have to file a second appeal of any cost award, incurring extra attorney fees and costs. They note Plaintiff will not be prejudiced because collection of any cost award is itself stayed under section 916.

In opposition, Plaintiff argues that Defendants have not presented competent, specific evidence of irreparable harm sufficient to justify a stay "beyond the automatic stay already in effect," characterizing their concerns about recordation, status quo disruption, and additional appeals as conclusory and unsupported by any particularized showing of injury. Plaintiff contends that allowing her to record and enforce the judgment does not render the appeal futile because, if Defendants succeed on appeal, any reversal can address the status of the recorded easement and any costs awarded.

As to the request to stay the cost hearing specifically, Plaintiff argues that the determination of costs is a collateral matter that is not embraced by the appeal and therefore not subject to the stay. Plaintiff argues that any concern about a second appeal is speculative, that any cost award would itself be automatically stayed pending appeal under section 917.1, and that the equities favor adjudication of

Plaintiff's statutory entitlement to costs without delay.

Civil Procedure Code section 916 provides:

Except as provided in Sections 917.1 to 917.9, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, *including enforcement of the judgment or order*, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order"

(Code Civ. Proc., § 916, subd. (a), italics added.)

Recordation of the easement against Defendants' properties constitutes enforcement of the judgment within the meaning of section 916. The judgment grants Plaintiff an equitable easement over Defendants' real property and expressly provides that "[a] copy of this Judgment shall be recorded in the Official Records of Contra Costa County against the Property and Defendants' respective properties." Recordation is the very mechanism by which the easement is effectuated against title and made binding on subsequent owners. Because recordation gives effect to the judgment on appeal, it is a matter "embraced" in or "affected" by the appealed judgment. If the appellate court were to reverse, Defendants would be left with the burden of clearing recorded encumbrances against their titles, potentially complicated by any intervening third-party reliance. Recordation of the easement is therefore stayed under section 916.

The Court notes that Code of Civil Procedure section 917.4 provides an exception to the automatic stay under section 916, stating that the perfecting of an appeal does not stay enforcement of a judgment that "directs the sale, conveyance or delivery of possession of real property which is in the possession or control of the appellant" unless an undertaking is given. Neither party raises section 917.4 in connection with this motion. Arguably, the statute applies, as the judgment grants Plaintiff an easement, an interest in real property, over Defendants' properties and orders its recordation against their titles. On the other hand, the statute may not apply. The judgment does not order Defendants to convey or deliver anything; an easement is non-possessory, and Defendants keep full ownership and possession of their fee titles. Either way, no undertaking would be warranted here. Section 917.4 is meant to secure against waste and to compensate for use and occupancy during appeal, and neither fits a shared roadway easement. The trial court found Defendants suffered no cognizable harm from Plaintiff's use of the roads, so there is nothing for an undertaking to protect against.

The Court reaches a different conclusion as to the hearing on Defendants' motion to tax costs. Defendants contend that "[w]hile CCP § 916 does not preclude a cost hearing from taking place while an appeal is pending, a stay of the award of costs is sought by Defendants because such an award would necessarily require that they file a second appeal and then consolidate the appeals for review." (Mot., p. 5:6–10.)

As Defendants acknowledge, while enforcement of a costs judgment may be stayed pending appeal, "the filing of a notice of appeal does not stay any proceedings to determine the matter of costs...." (*Bankes v. Lucas* (1992) 9 Cal.App.4th 365, 368–369, superseded by statute on other grounds as stated in *Lee v. Wells Fargo Bank* (2001) 88 Cal.App.4th 1187, 1197).

The parties were free to stipulate to continue or stay the hearing on Defendants motion o tax, but did not do so, and nothing Defendants cite supports the proposition that the Court should decline to hear the motion as noticed. It is also not entirely clear that a separate appeal would be required in this instance. (See, e.g., *Grant v. List & Lathrop* (1992) 2 Cal.App.4th 993, 998.) In any event, the question of whether Defendants will be required to file an additional notice of appeal is not before the Court, and does not require postponement of the motion to tax hearing.

Order

Defendants' motion is **granted in part and denied in part**. The motion is granted as to recordation of the judgment, or any easement instrument derived from the judgment. The motion is denied as to the hearing on Defendants' motion to tax costs, which shall proceed as scheduled on May 28, 2026.

Nothing in this order shall be construed to prevent Plaintiff, or her household members, guests, or invitees, from continuing to use the Muir Oaks roads to access her property at 4784 Venner Road during the pendency of the appeal.

18. 9:00 AM CASE NUMBER: MSC20-02134

CASE NAME: TERESA NEENO VS. BARRY HACK

***HEARING ON MOTION IN RE: TAX COSTS**

FILED BY: KINDER, JUSTIN S.

TENTATIVE RULING:

Defendants Michael Kylo, Tammy Kylo, Robert French, Julie French, Paul Engler, Rita Engler, Branon Long, Justin S. Kinder, as Trustee of the Justin S. Kinder Trust dated August 11, 2015; Vicky D. Jared, as Trustee of the Jared Family Revocable Trust U/A/D 08-09-07; Marc D. Palechek And Micah V. Palechek, as Co-Trustees of the Palechek Revocable Family Trust dated May 19, 2015; Gilbert French And Patricia French, as Co-Trustees of the Gilbert French and Patricia French Trust Dated August 11, 2004; David Timothy Hjortsvang And Erick Warren Hjortsvang, as Co-Trustees of the Hjortsvang Trust move to strike, or in the alternative, tax costs. Judgment was entered in favor of Plaintiff Teresa Neeno in this Quiet Title action on November 6, 2025 and she filed a Memorandum of Costs totaling \$72,034.56.

Pursuant to Code of Civil Procedure sections 1034 and 1033.5, certain costs may be claimed by a prevailing party. The party filing the cost memorandum bears the initial burden of showing that the statute allows the item and is proper on its face. (*Ladas v. California Sate Auto. Assn.* (1993) 19 Cal.App.4th 761, 774-776.) For items that are expressly permitted by statute, the burden is on the objecting party to establish that the costs were not necessary or reasonable, based on evidence. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224.) For items that are not expressly allowed, the burden of proof is on the party claiming them to show that they were reasonable and necessary. (*Foothill-DeAnza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29.)

This matter initially involved dozens of defendants. Some were defaulted and some dismissed after settlement. The remaining Defendants, named above, are 15 individuals representing 9 households. Defendants argue at various points that costs and fees relating to the dismissed or defaulted